

***Inc.*, (2016) 62. Cal.4th 1237, 1244.) In other words, because procedural unconscionability has been found, the analysis turns on consideration of the substantive unconscionability prong. The substantive inquiry considers whether the overall bargain is overly harsh or unreasonably one sided. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)**

Here, the terms of the arbitration agreement are not so harsh, unreasonable, or unfairly one sided as to render the agreement unconscionable. The arbitration agreement has the requisite modicum of bilaterality, is limited to Plaintiff's employment with Defendant, provides for a neutral arbitrator that must follow the law, provides adequate discovery, provides types of relief otherwise available in this court, and Defendant is to pay for costs unique to arbitration. The fact that the arbitration agreement contains a class, collective, or other representative action waiver does not render the arbitration agreement unconscionable.

This action is stayed pending arbitration.

An arbitration status hearing is set for Thursday, January 14, 2027, at 8:15 a.m. in Courtroom 8.

The court will sign the order lodged with the court on June 22, 2026.

26CV-03727

Francisco Corchado vs Claudia Corchado

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service on Respondent has been filed with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Special Set
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, July 24, 2026
9:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-06687	Rebecca Muro vs Wendy's of the Pacific, Inc.
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Hearing: In Camera

Appearance required by Defendant.
